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Whose liberty?

Montesquieu in Brazil

Legal capacity and images of authority



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Liberty

MONTESQUIEU · I.3 / XIX.4

Laws in relation to
customs, religion, commerce
and particular histories

MONTESQUIEU · VII.9

« Dans les républiques
les femmes sont libres
par les lois, & captivées
par les mœurs »

Free by the laws, held captive by mores.
[tr. AVVM]

MY READING

Whose liberty does the setting sustain?

1824

Reception through adaptation?

MY READING

Circulation of a text ≠ reproduction of a model

CONSTITUIÇÃO DE 1824 · ART. 10

Legislativo
Moderador
Executivo
Judicial



Compromisso Constitucional

Painted 1896 · oath of 26 February 1891

Deodoro holds the book.
Prudente presides.
Women watch from the gallery.

MY READING

Authority through an obligation, among men on the floor.

Aurélio de Figueiredo · Museu da República
Reproduction: Romulo Fialdini



Photograph: Fellipe Sampaio/STF

A Justiça

Alfredo Ceschiatti, 1961
Supreme Federal Court, Brasília

1961 Justice, as a woman, before the Court

1962 Married women removed from article 6

MY JUXTAPOSITION

What does the feminine figure authorise, and for whom?

The 1962 reform retained the husband's conjugal headship.

CÓDIGO CIVIL DE 1916 · ART. 6, II

« As mulheres casadas, enquanto subsistir a sociedade conjugal »

Relatively incapable: married women, while the conjugal society subsists. [tr. AVVM]

PRIMITIVE PROJECT

Restrictions and male headship

16 APRIL 1900

Relative-incapacity classification

16 OCTOBER 1901

Beviláqua defends the distinction

THE DOCUMENTED DISTINCTION

Restrictions preceded the classification

No direct influence from Montesquieu established

Questions for discussion

MY QUESTIONS

1 When a legal rule travels, what happens to the arguments used to justify it?

2 Whose liberty does the resulting legal order sustain?